

25STLC04466 25STLC04466

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-07-14

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Case Number: 25STLC04466 Hearing Date: July 14, 2026 Dept: 26

TENTATIVE

RULING:

Plaintiff Bridger Claims Services, LLC's Motion to Deem

Requests for Admission Admitted and Request for Sanctions is granted. Defendant

Evelyn Briggs is ordered to pay sanctions of \$360.00 to Plaintiff's counsel

within 20 days' service of this order.

Analysis:

Plaintiff Bridger Claims Services, LLC ("Plaintiff") served

Requests for Admissions, Set One, on Defendant Evelyn Briggs on April 3, 2026.

(Motion, Gaba, Jr. Decl., Exh. A.)

Despite a meet and confer effort, as of the filing of the instant Motion to

Deem Requests for Admission Admitted and Request for Sanctions on June 3, 2026,

Defendant has not served responses to the discovery. (Id. at ¶¶6-7.) Plaintiff

now moves for an order deeming the Requests for Admission admitted pursuant to

Code of Civil Procedure section 2033.280. Plaintiff served Defendant with the

Motion on the same date it was filed, but no opposition has been filed to date.

There is no requirement for a prior

meet and confer effort before a motion to deem requests for admission can be

filed. (Code Civ. Proc., § 2033.280.) Further, the motion can be brought at any

time after the responding party fails to serve responses. (Code Civ. Proc., §

2033.280.) Due to Defendant's failure to timely serve verified responses and

resultant waiver of objections, Plaintiff is entitled to an order deeming the

Requests for Admission admitted. (Code Civ. Proc., § 2033.280.)

The Court is required to award sanctions under the moving statute. (Code Civ. Proc., § 2033.280, subd. (c).) However, the amount sought is excessive for an unopposed motion to deem admissions admitted; Plaintiff's counsel does not need to spend 1.5 hours traveling to Court and attending the hearing. (Motion, Gaba, Jr. Decl., ¶8.) Sanctions are granted against Defendant in the amount of \$360.00 based on two hours of attorney time billed at \$150.00 per hour, plus the \$60.00 filing fee. (Ibid.)

Conclusion

Plaintiff Bridger Claims Services, LLC's Motion to Deem Requests for Admission Admitted and Request for Sanctions is granted. Defendant Evelyn Briggs is ordered to pay sanctions of \$360.00 to Plaintiff's counsel within 20 days' service of this order.

Moving party to give notice.